

From: Rich McLean <richarddrawsstuff@gmail.com>
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive]
Date: 25 May 2021 at 7:34:02 pm AEST
To: "General.Enquiries" <Enquiries.General@comcare.gov.au>
Cc: Rich McLean <richarddrawsstuff@gmail.com>

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.'

Your claims manager is here to support you through the claims

process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

,

On 18 May 2021, at 9:52

am, Advisory_Service@worksafe.vic.gov.au wrote:
Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

• • • Head Office, 1
• info@worksafe.vic.gov.au • Malop Street
Cassa • Tel/ 1800 136 089 or • Geelong VIC • •
ndra 9641 1444 • 3220 • • <14590346. <ecbla
• nk.gif>
Adviso • [www.worksafe.vic.gov.a](http://www.worksafe.vic.gov.au) gif>
r • u

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt - and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in wages, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicitly work-related by my private insurer, I was forced to bankruptcy

so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

***I interrupt* Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded**

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
 - Employees of Commonwealth authorities and licenced corporations
 - Persons declared by the Minister to be Commonwealth employees
 - Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

•

- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can contact us via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our COVID-19 guidance.

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

[<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>](mailto:SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au)

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA
[SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- Their ABN is: 25617475104
 -
- The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.
 -
- It is a TAX INVOICE (ie: an employer).
 -
- Document number: 300063677318
 -
- My NDIA number (ie my employee number), is stated clearly as: 4050046572
 -
- It is addressed to me personally- not my business
www.richmclean.com.au
 -
- It is for an advance payment from my employer in the time of COVID:
 -
- The number of that advance payment issued is: 300063667057
 -
- I also have a vendor number of: 4050046572
 -
- The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.

-

- The invoice is invoiced to me personally.

-

- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.

-

- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallows hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded.

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood.

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

Both of you do not know the circumstances by which you are being told by someone senior or 'higher than you' to 'kick the can down the road', and reject me as not being covered.

This is the way I have been victimised for many years now, and I will hold all pawns of public office of the veneer of disadvantaging me as such to that whistleblower complaint of agents that disrupt, persecute me, deny my freedoms and my agency to have prosperity.

You are both in above your head, for only I know the reason you are being told to reject me.

Please do not self demonise yourselves with jail time via my whistleblower statement simply because you are told to.

You are both better than that.

I have proven a valid case and failure to demonstrate that will lead to conviction via my whistleblower statement- so either hand it to someone who is identifiable senior to you, or I dare say suffer the consequences.

Here is the evidence, below, which the federal conspiracy has been watching and deleted off of my computer, but which I will publish along with this email.

,

So in fact, Comcare are a faceless identity - and I will not be rejected by someone I cannot civilly identify - so I will be placing the criminal offence of 'conspiracy to pervert the course of justice' on the highest named individuals complicit in the crime.

1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance

devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

On 25 May 2021, at 5:41 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:
Hi Richard

I am writing to provide you with an update on your workers compensation claim. Comcare will have an outcome on your claim tomorrow and will be in contact then.

Warmest regards,

Amy Delzoppo
Senior Claims Manager
Canberra 7 | Claims Management Canberra
Claims Management Group | Canberra

P: (02) 6276 0354

Comcare

GPO Box 9905, Canberra, ACT 2601

1300 366 979

www.comcare.gov.au

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.